

PERSONAL SERVICE AGREEMENT COVER SHEET

Appropriate Use of this Form

- Use this approved Personal Service Agreement (PSA) template when the College is engaging a Contractor to perform specific duties for a low dollar amount (not in excess of \$2500), or for a short period of time.
 - Example – hiring a motivational speaker for a one time presentation, or bringing in a dance instructor for a 6 week session.

How to Fill Out this Form

- Prior to completing the form, be prepared to provide the following information:
 - Name of the Contractor and full address
 - Term of the Agreement (start date/time and end date/time)
 - Compensation amount
 - Intervals that the College will submit invoices for services
 - Scope of work (details of the service(s) and product(s) to be provided)
- This form is in a Word document format with restricted editing. This means that you can only edit the highlighted areas in the document.
- Guidance for filling out the form is listed in blue text throughout the document. When you fill out the form, please replace the blue text with the appropriate information, or remove the blue text as applicable.

Things to Remember About Routing Contracts

- If a contract is grant related, you must contact the Grants Office prior to the contract routing process.
- If a contract is technology related, you must contact IT Asset Management prior to the contract routing process. IT Asset Management may review the contract for sensitivity of data accessed and the need for use of a non-disclosure agreement.
- After a contract is created, a [Contract Routing and Approval Form](#) should be completed and attached to each contract.
- When using an approved CSCC contract template found on the [Columbus State Employees Forms Page](#) under the Legal Office heading, there is no need to send the agreement to Legal for review. However, the College's legal counsel must review all non-standard agreements (not an approved CSCC contract template).
- Please follow your department's signature protocol developed according to the College's [Purchasing Authorizations and Signature Approval Protocol](#).
- Please send the fully executed contract, contract routing form, and any supporting documentation to:
 - The assigned grant accountant for contracts involving grants; or
 - Purchasing/Accounts Payable for contracts that are not grant related.
- Keep a copy of the contract in your department for records retention purposes.

**PERSONAL SERVICE AGREEMENT
BETWEEN
COLUMBUS STATE COMMUNITY COLLEGE
AND
INSERT NAME OF CONTRACTOR**

This Agreement for Personal Services is entered into by and between Columbus State Community College, 550 East Spring Street, Columbus, Ohio 43215 (“College”) and [insert name of Contractor and full address](#) (“Contractor”), for [add service to be performed](#) (“Work”), as requested by the College.

Contractor agrees to perform all duties within the scope of his/her expertise that are deemed necessary by the College. These duties shall be performed in accordance with accepted and established practices and procedures in Contractor’s area of expertise and certification.

It is understood and agreed by all parties that Contractor shall perform all duties assigned under this Agreement as an independent Contractor and not as an agent of the College or the State. It is further understood and agreed that Contractor shall not be considered an employee of the College or the State and shall not be eligible for employee benefits, including worker’s compensation coverage and Ohio Public Employees Retirement System benefits.

COMPENSATION: The compensation for performing the Work as directed by the College pursuant to this Agreement will be \$[amount](#) per [enter time frame \(for example: 8-week session \(32 hours per week\)\)](#).

Contractor is responsible for federal and tax filings and will receive a Form 1099 at year end indicating the total compensation paid by the College to Contractor for the calendar year.

TIME OF PERFORMANCE: The Work shall be commenced on [insert date](#) and concluded on or before [insert date](#).

This Agreement shall remain in effect until the Work is completed to the satisfaction of College and until Contractor is paid in accordance with this Agreement, or until terminated, whichever is sooner.

College may at any time prior to the completion of Work by Contractor suspend or terminate this Agreement with or without cause by giving written notice to Contractor.

RECORDING HOURS OF SERVICE: Contractor shall maintain a record of hours of service and shall submit the hours of service on the last business day of each month to the

head of the College office or department directing Contractor's services under this Agreement.

NONDISCRIMINATION: Contractor agrees that it, any subcontractor and any person acting on behalf of Contractor or a subcontractor shall not discriminate by reason of sex, race, color, religion, national origin, ancestry, age, disability, genetic information (GINA), military status, sexual orientation, pregnancy, status as a parent of a young child, status as a nursing mother, status as a foster parent, and gender identity and expression against any citizen of this state in the employment of any person qualified and available to perform the work under this Agreement.

COMPLIANCE OF LAW: Contractor agrees to comply with all applicable federal, state and local laws, rules, regulations and ordinances in the execution of duties and obligations under this Agreement. This Agreement and the rights of the parties hereunder shall be governed, construed, and interpreted in accordance with the laws of the State of Ohio. Contractor consents to jurisdiction in a court or proper jurisdiction in Franklin County, Ohio.

ENTIRE AGREEMENT: This Agreement contains the entire agreement between the parties and shall not be modified, amended or supplemented, or any rights herein waived, unless specifically agreed upon in writing by the parties. This Agreement supersedes any and all previous agreements for the Work, whether written or oral, between the parties.

CERTIFICATION OF FUNDS: None of the rights, duties and obligations described in this Agreement shall be binding on either party until all relevant statutory provisions of the Ohio Revised Code, including, but not limited to, R.C. 126.07, have been complied with and until such time as all necessary funds are available or encumbered and, when required, such expenditure of funds is approved by the College's Board of Trustees. **ADD if grants involved:** "In the event that grant funds are used the Agreement is not effective until such time that the College gives Contractor written notice that such funds have been made available to the College by the College's funding source."

ETHICS COMPLIANCE: Contractor represents, warrants and certifies that it and its employees engaged in the administration or performance of the Agreement are knowledgeable of and understand the Ohio Ethics and Conflict of Interest laws. Contractor further represents, warrants, and certifies that Contractor and any of its employees will comply with the ethics and conflict of interest provisions of R.C. Chapter 102, R.C. 2921.42 and 2921.43, and any other requirements of law or Board of Trustees policy.

CAMPAIGN CONTRIBUTIONS: Contractor hereby certifies that neither Contractor nor any of Contractor's partners, officers, directors or shareholders, nor the spouse of any such person, has made contributions in excess of the limitations specified in R.C. 3517.13.

DRUG FREE WORKPLACE AND TOBACCO FREE CAMPUS: Contractor agrees to comply with all applicable federal, state and local laws regarding smoke-free and drug-

free work places. Contractor shall make a good faith effort to ensure that none of its employees or permitted subcontractors engaged in the work being performed hereunder purchase, transfer, use, or possess illegal drugs or alcohol or abuse prescription drugs in any way.

Contractor agrees to comply with the College's policy governing tobacco free College property. The use of all types of tobacco products is prohibited in all Columbus State owned or leased buildings and properties including parking lots, garages, and outside areas. Contractor will notify its employees or permitted subcontractors engaged in the work being performed hereunder of the tobacco free policy.

CONFIDENTIALITY: It is expressly understood by the parties that College is subject to the Ohio Public Records Act, R.C. 149.43, *et seq.*, and that any record kept by College that is deemed a public record is subject to release if a proper request is made.

Contractor may identify in writing information shared with College that it considers to be confidential and exempt from disclosure under the Ohio Public Records Act (the "Identified Information"). If College receives any request for the disclosure of Identified Information, College shall promptly notify Contractor of such request so that Contractor may have the opportunity, within a reasonable period of time, to determine what information, if any, may be protected by applicable law, and to seek appropriate legal action, including injunctive relief, to prevent disclosure of the Identified Information.

Contractor understands that it may, pursuant to this Agreement, generate or otherwise be in possession of confidential education records regarding College's students, and that these records are protected by federal law including, inter alia, the Family Educational Rights and Privacy Act ("FERPA"), 20 U.S.C.A. 1232g. Contractor further understands that it may not share or disclose these education records with any party other than the College, without both College's and the relevant student's consent.

PHOTOGRAPHIC / VIDEO / FILM / AUDIO RECORDING RELEASE [Use this provision if applicable](#)

Contractor/speaker expressly grants College permission to use contractor's photograph, image, video or other likeness in any and all of its educational publications, materials, training films, or website entries, and/or grant permission for use by outside entities or media without payment, royalties or any other consideration. I understand and agree these photographs/images/materials will become the exclusive property of the College. College agrees not to otherwise use, sell, produce, reproduce, or publicize the contractor/speaker's photograph, image, video or other likeness.

Speaker agrees to Waive Claims and Release College, its officers, trustees and employees for any claims, demands, liabilities, causes of action, costs and expenses based upon personal injuries, property damage, breach of any representation or term of this agreement or College's use, infringement, exploitation of the film/video/recordings or photographs made as contemplated herein.

LIABILITY: Contractor agrees to indemnify and to hold the College and the State of Ohio harmless and immune from any and all claims for injury or damages arising from this Agreement which are attributable to its own actions or omissions or those of its trustees, officers, employees, subcontractors, suppliers and third parties utilized by it while acting under this Agreement.

Contractor shall bear all costs associated with defending the College and the State of Ohio against any claims.

In no event shall either party be liable to the other party for indirect, consequential, incidental, special or punitive damages or lost profits.

Contractor agrees, at its own cost, to procure and continue in force at all times that this Agreement is in effect general liability insurance against any and all claims for injuries to persons or damage to property occurring or arising out of Contractor's obligations set forth herein.

EXECUTION: This Agreement is not binding upon the College unless executed in full, and is effective as of the last date of signature by College.

(remainder of this page intentionally left blank)

The parties signing below are duly authorized officers of their respective entities.

Contractor/Vendor
Address
Address

Columbus State Community College
550 East Spring Street
Columbus, OH 43215

By _____

By _____

Printed Name _____

Printed Name _____

Title _____

Title _____

Date _____

Date _____

Contractor

Columbus State Community College

By _____

Printed Name _____

Title _____

Date _____

Account Number: _____